

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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TRACEY MCGOVERN,

Plaintiff,

-against-

FIRST AMENDED
COMPLAINT and DEMAND FOR
JURY TRIAL

09 CV 4705 (JBW)(CLP)

THE CITY OF NEW YORK; DANIEL AYBAR,
LUKE DENESOPOLIS; DENISE RINALDI;
GARY GILLESPIE; STEVEN HOM; and
ANTHONY MAIDA,

Defendants.

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INTRODUCTORY STATEMENT

1. The Plaintiff, Tracey McGovern (“McGovern” or “Plaintiff”) brings this action under 42 U.S.C. § 1983 and related state laws seeking declaratory relief, compensatory and punitive damages, and attorney's fees under 42 U.S.C. § 1988 for the Defendants' violation of her rights afforded by the United States Constitution and the laws of the State of New York.

2. Defendants Daniel Aybar (“Aybar”), Luke Denesopolis (“Denesopolis”), Denise Rinaldi (“Rinaldi”), Gary Gillespie (“Gillespie”), Steven Hom (“Hom”) and Anthony Maida (“Maida”) (collectively, the “individual defendants”) arrested Plaintiff without probable cause to believe that she committed any criminal offense. After being unlawfully strip searched by Rinaldi and held in custody for approximately 19 hours without being arraigned, Plaintiff was released without being charged.

JURISDICTION

3. The Court has jurisdiction over Plaintiff’s claims under 42 U.S.C. § 1983, pursuant to 28 U.S.C. §§ 1331 and 1343(3).

4. The Court has supplemental jurisdiction over Plaintiff's state law claims pursuant to 28 U.S.C. § 1367.

5. Venue is proper in this district pursuant to 28 U.S.C. § 1391(b)(2) in that the events that gave rise to the claim took place within this district.

6. Prior to the commencement of this action, and within ninety (90) days of the occurrence herein, Plaintiff served a notice of claim in writing, upon the Defendant City of New York, in accordance with Section 50(e) of the General Municipal Law.

7. More than thirty (30) days passed between the service of Plaintiff's notice of claim and the commencement of the action, and during such period the Defendant City of New York neglected and refused to pay said claim or adjust same.

8. This action was commenced within one year and ninety days of the occurrence complained of herein that gave rise to Plaintiff's injuries, and Plaintiff has complied with all of the prerequisites for bringing this action.

PARTIES

9. The Plaintiff, who is 37 years old, is a citizen of the United States and lives in Brooklyn, New York.

10 Defendant, the City of New York, is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and as such is responsible for the practices, policies, and customs of the New York City Police Department.

11. Each Individual Defendant is sued herein in his or her individual capacity, is an employee and agent of the City of New York, and was acting at all times herein under color of law and within the scope of his or her employment as a New York City Police Officer.

12. All Defendants, either personally or by and through their employees, were at all times

material to the incident, acting under color of state law, to wit, under color of the statutes, ordinances, customs, policies and/or practices of the State of New York and/or the City of New York, and Defendant City of New York's employees were also acting within the scope of and in furtherance of their employment.

13. At all times material to the complaint, the Defendants acted jointly and in concert with each other. Each Defendant had the opportunity and the duty to protect the Plaintiff from the unlawful actions of the other Defendants but each Defendant failed and refused to perform such duty, thereby proximately causing the Plaintiff's injuries.

FACTUAL ALLEGATIONS

14. On May 15, 2009, at approximately 11:00 PM, Plaintiff was in the hallway outside her apartment at 2007 Surf Avenue, Brooklyn, NY.

15. Plaintiff was waiting for the elevator so she could escort Pedro Ramirez, the father of her children, from the building.

16. At that time, the Individual Defendants arrived and, acting in concert with each other, placed the Plaintiff under arrest.

17. No Defendant had probable cause to believe that Plaintiff had committed any crime. Upon information and belief, Plaintiff was arrested solely because of her proximity to Mr. Ramirez, who was arrested for drug possession.

18. Plaintiff's children witnessed their mother's arrest, and her being taken from her home in handcuffs.

19. Plaintiff was taken to the 60th Precinct station house, where Rinaldi strip searched Plaintiff.

20. Defendant Rinaldi had no reasonable suspicion to believe that Plaintiff was secreting any contraband.

21. Plaintiff was held until approximately 6:30 PM the next day, before she was released without being arraigned or charged with any crime or offense.

FIRST CAUSE OF ACTION : 42 U.S.C. §1983

22. As a direct and proximate result of Defendants' actions as detailed above, Plaintiff was deprived of rights, privileges and immunities secured to her under the constitution and the laws of the United States, including, but not limited to, her rights under the Fourth and Fourteenth Amendments and 42 U.S.C. § 1983 to be secure in her person, to be free from the use of excessive and unreasonable force, and to be free from unreasonable searches and seizures.

23. The Individual Defendants acted with malice or with reckless disregard for whether Plaintiff's rights would be violated by their actions.

24. As a result of the aforesaid violation of Plaintiff's rights, she sustained grievous and permanent personal injuries to mind and body, sustained great pain and suffering, and was deprived of her liberty and made ill.

25. Plaintiff seeks compensatory and punitive damages from each Individual Defendant.

SECOND CAUSE OF ACTION: ASSAULT AND BATTERY

26. The Plaintiff was assaulted and battered by employees of the Defendant City of New York. Said assault and battery involved Plaintiff's fear and apprehension of unprivileged bodily contact with the Individual Defendants, said fear and apprehension being intentionally caused by the aforesaid Individual Defendants, and from the intentional and unlawful bodily contact described herein.

27. The aforesaid assault and battery of the Plaintiff was without excuse or privilege, and was in no way justified in self defense or otherwise, and the Plaintiff in no way resisted, threatened or provoked the aforesaid individual Defendants, or gave them probable cause to believe she was secreting contraband of any sort.

28. The aforesaid assault and battery of Plaintiff was made possible, and was proximately caused by, the agency relationship between the aforesaid Individual Defendants and the City of New York, to wit, the employment of the aforesaid individual Defendants by the Defendant City of New York as police officers.

29. The aforesaid assault and battery of the Plaintiff occurred during, in furtherance of, and within the scope of the employment of the Individual Defendants by the City of New York, to wit, the employment of the aforesaid Individual Defendants by the Defendant City of New York as police officers.

30. As a result of the aforesaid agency relationship, and the aforesaid Individual Defendants' acts while within the employ of the Defendant City of New York, the Defendant City of New York is vicariously liable for the aforesaid intentional tortious conduct of the Individual Defendants, in that the City of New York encouraged and/or otherwise fostered and/or allowed the assault and battery upon the Plaintiff by giving the individual Defendants the means and opportunity to perform such assault and battery and/or allowing, creating and/or suffering an official policy or custom which made such assault and battery possible.

31. As a result of the foregoing, Plaintiff sustained grievous and permanent personal injuries to mind and body, sustained great pain and suffering, and was deprived of her liberty and made ill, and seeks compensatory damages from all Defendants, as well as punitive damages from all Individual

Defendants.

THIRD CAUSE OF ACTION: NEGLIGENCE

32. The Individual Defendants and/or other employees of the Defendant City of New York were negligent in the following respects: they neglected to use the proper standard of care in caring for the Plaintiff; in failing to refrain from using unnecessary and unjustified force, and in failing to refrain from conducting an unlawful strip search; in that their actions were unjustified; in that they failed to recognize that Plaintiff committed no offense and should not have been arrested; in otherwise failing to prevent Defendant officers from engaging in the activity described above; in failing to use reasonable care, prudence and diligence in managing, caring for, protecting Plaintiff and controlling persons who were under the authority, custody and arrest of the New York City Police Department; failing to properly train in the proper use of force, the proper circumstances to conduct a strip search, and the proper time to arrest, supervise, and discipline Defendant officers; in negligently failing to terminate the employment of the individual Defendants, or some of them, after notice, actual and/or constructive, that said individual Defendants had violent and abusive tendencies and were unfit to be police officers; in otherwise failing to act with that degree of reasonable care and diligence that the circumstances then and there existing required, and which would have prevented the happening of the occurrence complained of herein.

33. The aforesaid occurrence was due solely to the negligence and carelessness of the Defendants, the City of New York and/or their agents, servants and/or employees, in the hiring, training, supervision, disciplining, and retention of the Individual Defendants; in failing to properly train, instruct and/or advise said Individual Defendants in the proper use of force; and in failing to stop the aforesaid assault and battery of the Plaintiff, and in otherwise failing to take such reasonable

and prudent measures that would have prevented the occurrence complained of herein.

34. As a result of the aforesaid violation of Plaintiff's rights, she sustained grievous and permanent personal injuries to mind and body, sustained great pain and suffering, and was deprived of her liberty and made ill, and the Plaintiff seeks compensatory damages from the City of New York, as well as punitive damages from each Individual Defendant.

JURY DEMAND

35. The Plaintiff respectfully demands that the proceeding be tried by a jury.

WHEREFORE, Plaintiff prays for the following relief:

- 1) For a declaratory judgment under 28 U.S.C. Sec. 2201, declaring that the Defendants, separately and in concert, violated the Plaintiff's constitutional rights; and
- 2) For compensatory damages against all Defendants; and
- 3) For punitive damages against the Individual Defendants; and
- 4) For attorney's fees and costs pursuant to 42 U.S.C. § 1988; and
- 5) For such other relief as is just and proper.

DATED: New York, New York
May 24, 2010

Respectfully submitted,

BERANBAUM MENKEN LLP

/s/
By: Jason J. Rozger (JR8986)

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